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Tentative Ruling

Re: **Cisneros v. Ortiz**
Superior Court Case No. 25CECG04590

Hearing Date: June 24, 2026 (Dept. 501)

Motion: Expedited Petition to Compromise Claim of Minor

Tentative Ruling:

To deny the petition, without prejudice, for the reasons explained below. In the event that oral argument is requested the minor is excused from appearing.

Explanation:

The court has reviewed the petition and supporting declaration and generally approves of the settlement, however, there are items of costs that prevent the court from granting the petition. The Petition requests costs in the amount of \$1,124.53. The court does not intend to approve charges against the minor's recovery that are unreasonable. (Prob. Code, § 3601.)

While counsel has explained much of the costs to the court's satisfaction in the supplemental declaration, concerns remain for the \$418.20 in costs described as "Case Costs". Of these, the court is particularly concerned with the reasonableness of \$10.00 in phone costs, \$5.50 for file opening costs, \$82.08 of the estimated closing costs¹, and \$200.00 for in-house record retrieval. The \$200.00 for in-house record retrieval appears duplicative of costs the court is already inclined to grant associated with obtaining the minor's records from CIOX Health, MRO, Records Research, Inc., Adventist, CRMC, and Sequoia Safety Council. The court is only inclined to accept as reasonable \$120.62 of the \$418.20 requested as "Case Costs". Thus, the total costs the court would be inclined to accept as reasonable would be \$826.95.

As such, the petition is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/23/26
(Judge's initials) (Date)

¹ Of the total \$132.08 in estimated closing costs, the court is inclined to allow for the \$50.00 requested to cover notary fees, leaving a remaining \$82.08 for which the court is not inclined to find reasonable.

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Tentative Ruling

Re: **Vasquez v. Ibarra**
Superior Court Case No. 24CECG01225

Hearing Date: June 24, 2026 (Dept. 501)

Motion: By Defendant Sensient Natural Ingredients LLC to Transfer the Action to Merced Superior Court

Tentative Ruling:

To grant and transfer the action to Merced County Superior Court. (Code Civ. Proc., § 397, subd. (c).)

Explanation:

Plaintiff in this action alleges sexual harassment in employment by her supervisor. The action was filed in Fresno Superior Court because one defendant, Pedro Ibarra (the alleged perpetrator of the sexual harassment), was alleged to reside in Fresno County. No other defendant is in Fresno County, and all events occurred in Merced County where plaintiff lives.

The Complaint was filed on March 20, 2024. Defendant and moving party Sensient Natural ingredients LLC ("Sensient") filed its Answer to the Complaint on May 13, 2024. Plaintiff dismissed Ibarra from the action on October 11, 2024. Sensient filed the motion to transfer the action to Merced County on April 21, 2026.

The motion is brought pursuant to Code of Civil Procedure section 397, subdivision (c), which provides: "The court may, on motion, change the place of trial in the following cases: ... (c) When the convenience of witnesses and the ends of justice would be promoted by the change."

Even if filed in a "proper" county, the court has *discretionary* power to transfer the case to any other county "[w]hen the convenience of witnesses and the ends of justice would be promoted by the change." (*Rycz v. Superior Court* (2022) 81 Cal.App.5th 824, 836.) There is no dispute as to whether venue was proper in Fresno County when the action was filed, as Ibarra is alleged to be a Fresno County resident. But he is no longer in the case, and he is the *only* connection, witness or party, to Fresno County.

The evidence submitted with the motion overwhelmingly and unquestioningly establishes, without any contrary evidence or argument from plaintiff, that the "convenience of witnesses and the ends of justice would be promoted" by a transfer to Merced County Superior Court. Plaintiff lives in Merced County; this lawsuit arises out of a Merced County workplace; all the underlying alleged events took place in Merced County; the vast majority of witnesses (25 of the 26) identified in Sensient's motion reside and work in or closer to Merced; and plaintiff has not submitted a single declaration from a single witness who would prefer to have trial in Fresno. There is one witness that might

conceivably benefit from a Fresno County trial – Ibarra – but plaintiff submits no evidence that he actually resides in Fresno County.

Plaintiff relies on Code of Civil Procedure section 396b in support of the argument that the motion is untimely. But the motion is not brought pursuant to section 396b. The motion is brought pursuant to section 397, which contains no express time limitation. It is said that a motion for change of venue based on convenience of witnesses must be made within a *reasonable* time after the answer is filed (here, May 14, 2024), and what constitutes a “reasonable” time rests largely in the trial court’s discretion. (*Cooney v. Cooney* (1944) 25 Cal.2d 202, 208.) But “[t]here is no time fixed by statute when an action may be transferred for trial because of convenience of witnesses or to promote justice.” (*Ibid.*)

The delay in bringing the motion in this case is undoubtedly great. The parties present different characterizations of the degree of litigation activity that has occurred in Fresno County to date. While a fair amount of activity has occurred, not a single deposition has occurred in this case, this is the only motion that has been filed in this case by any party, no expert witness designation has occurred, plaintiff has issued no subpoenas, and trial is over six months away. It does appear that the lion’s share of the work still has to be done.

In light of the overwhelming and uncontradicted showing of convenience to witnesses by transferring to Merced County, and burden of holding trial in Fresno (see Compendium of Witness Declarations), the court intends to grant the motion.

With regards to the parties’ objections, the court sustains Sensient’s objection nos. 1-3; and overrules objection nos. 4-6. The sustaining of objections has no impact on the court’s ruling. The court intends to deny plaintiff’s request to strike or disregard (a) the Supplemental Bauer Declaration in its entirety, (b) Exhibits 18-20, and (c) the vague request to strike “All new arguments and legal theories” in the reply. Defendant is properly responding to new issues raised by plaintiff in the opposition. However, the court intends to sustain the objection to Sensient’s Exhibit 21.

Finally, the court notes that plaintiff’s opposition brief is procedurally deficient in various regards.² The opposition (a) fails to include the required table of contents and table of authorities (Cal. Rules of Court, rule 3.1113(f)); (b) improperly cites to various superior court decisions (see *Environmental Health Advocates, Inc. v. Pancho Villas, Inc.* (2026) 118 Cal.App.5th 778, 790, fn. 4); and (c) cites to many cases with only Lexis citations without lodging copies in an appendix of authorities. (Local Rule 2.2.6.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

² This is not a ground on which the motion is granted.

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